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To
San Jose City Council

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Matt Mahon's Proposal to Criminalize Houselessness

Dear San Jose city council members,

I am writing in regards to Matt Mahon's proposition of making houselessness illegal in the event that a person continuously refuses shelter.

the most glaring problem here – one which will surely undermine Mahon's inhumane efforts in the long run – is how little has been said with regard to stipulating tenant rights & responsibilities or of the quality standards of shelters. When a person continuously refuses shelter, the natural and reasonable question to ask is 'why?'. And when it is the case that so many persons who refuse shelter consistently cite the inadequate state of shelters, the unnecessary restrictions of autonomies, and the demeaning treatment people receive when going there, it is in the least case only rational to investigate these claims. Yet somehow, those who discuss these people's fates usually only speak of the lack of shelters – they say nothing of quality standards. Over ten years of advocating for shelter reform in Oregon has made it abundantly clear to me that reforming shelters so they meet a higher standard is where the real challenge lies, and this is work Mahon and so many others conveniently ignore in an effort to simplify the issue in ways which will fit their own agenda. What attempts there are to study shelter systems today are laughable in their lack of objectivity and the lack of qualitative ethnographic standards. In the present case, Matt Mahon may well be trying to infuse his fledgling political career with much needed hype, but he has given little thought to the systemic repercussions of the proposals he has put forth, or of alternatives which the city of San Jose might pursue.

I hope council members who are in support of Mahon's plans consider,

- A. Mahon was elected at a time when 'homelessness' was perhaps the most concerning issue for many cities along the west coast, but this is no longer the case.
- B. When a man's greatest idea is how to criminalize people for not going to shelters and he conveniently sweeps the question of why people do not go to these places to begin with under the rug – this is a good indicator that such a man is not in possession of innovative ideas, nor is he capable of strategizing pragmatically. It is perhaps too much to ask for that those elected as mayors have transcendental qualities or to be a person who is willing to put in the work and make the commitment needed to see through changing deeply fundamental facets of society. But in the least case we should try to ensure the community is protected from opportunists who care more about their own short-term political aspirations than they do about whether their strategy will actually work in the long run, or in what ways it might undermine basic human rights. Any time we find ourselves scraping the bottom of the barrel for ideas as San Jose seems to be at the moment, we should default into defensive mode.

About 15 years ago I stayed at the rescue mission in Eugene, OR. It was very different then than it is today in that it had a very large and accommodating day room from which people could come and go as they pleased, access showers when needed, relax, find clean clothes at various times of the day, eat meals, etc. – all without standing in lines out in the cold for hours every day as is the norm in so many shelters today. Still, even then this mission had mandatory chapel service for those who did choose to stay the night. They had issues with power trips and demeaning treatment by staff, and their curfews were not always compatible with employment (nor were they willing to bend on this). Today, this day room has devolved into a holding cell in which new

arrivals must submit themselves to being contained in for twenty days straight before 'graduating' to the upstairs dormitory. Shelters in Portland can no longer be accessed without being checked in by a professional staffer. I watched that town go from good to bad to awful.

The reasons behind why shelters are becoming even less desirable places than they were 10-20 years ago have much to do with the housing first agenda which the *National Coalition to End Homelessness* has taken to literally bribing private agencies into adopting. It also has to do with the desire of social workers to professionalize the act of 'serving' the unhoused and justifying the need for more funds instead of enabling unhoused persons to do for themselves.

There is also a cultural aspect to consider..

About ten years ago a seemingly simple question arose in my mind; 'why not pack a warehouse full of bunkbeds and put them on the free rental market? why have our options been reduced to paying for an arm and a leg for our own undersized private unit, being chased around outside, or of being treated like prisoners in missions?'. And I thought to myself that people are homeless, not helpless, and they need options more than they need help. My background being in physics, my instinct was proof by disproof; I sought out holes in my own idea. Instead of finding such a thing cannot be done or has not already worked, I instead found that it (communal living in general) is too easily sabotaged by those with a vested interest against it. Aside from the numerous vested interests there are to be found against communal institutions (especially those which go so far as to legitimize communal living/ sleeping), on a cultural level these places present too much of a contrast to the surrounding domestic society.

For starters – before I ever began reading history books by the dozen – a strange thing I observed in my years of experience is that unhoused peoples coming together as a community in a healthy fashion seemed to be perceived by the surrounding populace as a greater threat than was individual acts of degeneracy by isolated campers. Why would people coming together threaten those nearby more than all the hoarding, stealing, and drug use which a system of compartmentalized tents give rise to? It is because we are still tribal creatures, and this is still tribal warfare. Accordingly, although it is looked down on, it is OKAY to devolve into a street life because you come from a broken family and/ or the domestic social life didn't fit you; it is OKAY to turn to drugs as a means of connecting to other humans, and it is OKAY to piss and shit yourself after getting high on public sidewalks once the daily ostracism and punishment of domestic society takes its toll. It cannot, however, be OKAY for you to come together as a tribe and heal yourselves in holistic fashions, for it is only when it is divided that a family falls.

Basically, I am saying that 'homelessness' is a family issue more than it is a private housing issue. Healing our families, and legitimizing alternative (or restoring very old) forms of family for those who come from a broken family is really where our focus ought to be if we hope to improve the issue in any meaningful way rather than shuffle it around. Today economists might refer to what I am trying to describe and to suggest we redirect our focus to improving [as opposed to simply housing people] as 'social capital'. Many who experience it out here will tell you 'homelessness' is a simple matter of loneliness. More specifically, I am arguing it is an attempted return to a tribal way of life for those who have failed to find purpose in the domestic way of life; a street family to substitute for the nuclear family that didn't work out.

By now I've read laundry baskets full of history books, and I am convinced there is a tug-a-war which consistently arises between communal and domestic forms of society. Living communally is in our DNA – we are inherently tribal creatures. Transitioning from a communal scheme to one in which private property, monogamous marriage, the nuclear family, and the private home are all fundamental principles of organization which we accept as 'normal' today. But these principles weren't normalized overnight, nor did this occur without mass indoctrination¹, centuries of conditioning, and much strife – bloodshed even. There was a time when people were governed according to what social group they belonged to rather than by what geographic territory they currently inhabit. This is such a fundamental paradigm shift in both governmental systems and in the notion of identity construction that only a fool would think he could change it in a short time – in his own lifetime even.

My purpose is only partly to erase the dogma preached by housing first advocates – that 'homelessness is a housing issue'. Again, *Homelessness* is a *family* issue. From its inception thousands of years ago, the private home was [and it remains] a tool to legitimize the supremacy of and to serve the needs of the nuclear family (as opposed to the tribe which has largely been de-constructed and rendered a taboo topic). Anthropologists often note how labor markets in any society of the last thousand years tend to center around the private home

(and by extension the nuclear family). Without a family a person loses motive to perform labor in such labor markets. What the housing first strategy amounts to for many persons who come from broken families is this; they are shoved into isolated and overpriced boxes which in effect separate them from what at some point became their most significant source of family – their street family (their tribe). Drugs become an excuse to reconnect with others in such a divided state. Hoarding of goods and territoriality [characteristics of a domestic existence] instead of a conscious sharing of goods and an unconscious cultivation of trust is the inevitable result of living next to rather than with one another. We see this outcome in tent communities here in California and elsewhere.

What is rarely tolerated however, is outdoor communal sleeping – regardless of the fact that such an approach is much cleaner and cost efficient. For a time I seen this method in effect in Oregon, and it had very positive outcomes – so positive I dare say many observers would be suprised to find it is the cultivation of community more than the establishment of a tent which motivates people. This I'd reason is because it is shame and safety that are the feelings which ultimately motivate us. Some degree of safety can be found in tents, but even then many rely on safety in numbers – by the presence of others. When a person arrives to a town and they have no where to go and no encampment established, and especially if they are new to the act of sleeping outside, then it is natural to seek safety in the presence of others who are in the same boat. Shame can and usually is hidden from with the use of private walls and tents. But it is all too often overlooked that in a more natural and human state, we overcome shame with a sense of tribal belonging; so long as we have a group of people close by to call our own and with which we may face the surrounding world, then it matters little what others think of us or how they label us.

My primary purpose however, is not to convince the council that they should pursue shelter reform or to piss in the wind as I have trying to reinvent communalism. It is instead to convince you all that a reasonably educated person has put his life into this matter, and he has come to the conclusion that shelters – communal living arrangements in general – cannot be reformed unless or until government itself is reformed. Like education, housing is a thing that is very difficult to change, mainly because government won't *allow* it to change. And this is a thing which goes well beyond any one city or transient body of council persons.

One might wonder if it is possible to just criminalize unhoused persons without worrying about what humane alternatives they have, and to this I can only be optimistic and presume I am writing to intelligent people. No further consideration of this break in my chain of reasoning warrants considering; to criminalize unhoused people should be considered equivalent to pursuing shelter reform, as pursuing the former will sooner or later require addressing the latter.

So, while I wholeheartedly believe shelter reform is necessary, again, it is futile unless or until government itself is in some way changed. To this I bring to mind the words of the influential economic historian Karl Polyani, "too much change, too fast, is dangerous".

I have come to accept that real change is like planting the seeds to a tree which you may not be around to reap the fruits of. Real change happens gradually and in harmony with its surroundings – it does not violently uproot and overthrow entire systems which people have learned to rely on. People are creatures of ecology; if you suddenly uproot them and force them into a different environment it will surely have unforeseen and unintended consequences. In the end it will not serve the city of San Jose. At best, if we let this come to pass, it will serve the political ambitions of one imbecile. My father used to say to me that, 'evil spirits are things you feed, and the more you feed them, the more they'll demand of you'. What Mahons proposal really is is an attempt to create drama – to create political energy for his fledgling political career to feed on.

Notes: ¹ e.g. nomadic tribal spiritual beliefs overlaid with formal religious beliefs which had interwoven into them inherent qualities of the domestic life; centralized/ hierarchical/ patriarchial systems of authority, sedentarism, monotheism and monogomy – rigid loyalty to a set person, group, or god in general.

Thank you,

Wayne W. Gazzola